

De Locis Theologicis - Cano

De Locis Theologicis Libri Duodecim (*On Theological Topics, in Twelve Books*)

by Melchior Canus (Melchor Cano, O.P.), published posthumously 1563

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Note on this selection: Cano died in 1560 and never treats in express terms the question later disputed — whether it is immediately de fide that this particular man, accepted by the whole Church, is the true pope. He is nevertheless the authority most consistently cited on the negative side of that question (by Suárez, Gaspar Hurtado, John of St. Thomas, the Salmanticenses, Gonet, Palanco, Puteobonelli, Viva, and, in the twentieth century, Marín-Sola), always at “lib. 6 de locis, cap. ult., ad 10” — the response translated in full below. The other selections supply the passages of Books IV and V on which both sides of the later dispute drew: the knowability of the Church’s rulers, the Church’s inerrancy in believing (extended to facts such as the canon of Scripture), the state of the Church under rival pontiffs and sede vacante, the impossibility of doubting the conditions of the Church’s judgments, the canonization of saints, and the Church’s adherence to Eugene IV against the Basel antipope Felix.

Book IV, Chapter 3 (p. 131) — The errors of Wycliffe and the Hussites on predestination and ecclesiastical power

The second heresy, moreover, was exploded by our forefathers above all because there cohere with it, by a necessary bond, other most pestilent ones condemned at the same Council [*margin: Council of Constance, Session 15*]: “If the Pope is foreknown (to damnation), he has no power over the faithful, except perhaps from Caesar.” Likewise: “No one, without revelation, can rationally assert of himself that he is head of a particular church.” Likewise: “Present righteousness and grace do not make anyone either a member of Christ or of the Church.” Likewise: “The predestined, even if unbelievers, are always members of Christ and of the Church; wherefore neither was Paul ever a member of the devil, nor Judas of Christ.”

All of which are both plainly false in themselves and vehemently repugnant to the catholic faith. The commonwealth of Christ would certainly have been most unwisely established if the power of its magistrates in it were shrouded in such darkness that it shone forth to none of the faithful at all. For since all the faithful would be in doubt whether the Supreme Pontiff, the bishops, the priests, and the other ministers of the Church are predestined or not, they must also be in doubt whether they are bound by their decrees and judgments. Thus it will come about that all the dogmas of the Church and of Councils are ambiguous, and all laws weak and without force adequate to compel. And what more foolish could be said than that a citizen cannot at all recognize who the magistrates of his own city are? Those, therefore, who think thus both make the founder of the Christian commonwealth a fool, and overturn all ordinances, precepts, and sanctions, and the entire power of the Church from its foundations — a power which must needs waver and collapse among those for whom it is hidden, uncertain, and infirm.

Nor is there need of arguments drawn from reason to convict of error this irrational — I will not say opinion, but madness — since for refuting it the testimonies of Scripture are most manifest. “You,” it says, “are the light of the world. A city set upon a mountain cannot be hidden; nor do they light a lamp and put it under a bushel,” etc. [Matt. 5] Likewise: “If he will not hear them, tell the Church; but if he will not hear the Church,” etc. [Matt. 18] The Church, therefore, must necessarily be manifest and known to the faithful.

[...]

Book IV, Chapter 4 (pp. 135–137) — Second conclusion: the Church cannot err in believing

[*margin: Second conclusion.*] The second conclusion: the Church cannot err in believing. For some interpret the perpetual faith of the Church in such a way as to understand that God is present to the Church even to the consummation of the age, so that true faith and charity never fail her; but that she can nevertheless, with a probable (blameless) ignorance, be ignorant of some one particular matter — which being unknown, the Church would not on that account lose the faith. For let us suppose, for the sake of argument, that it has not been revealed by God that the Blessed Virgin was free from original sin. For nothing forbids setting down a feigned case by way of example, so that the matter may be more easily understood — although the example is in fact true, as we shall show later.

They say, then, that although the Church should believe that the holy Virgin was conceived without sin, and should likewise define that this must be believed by all, she would nevertheless not be judged thereby to suffer any loss of faith. For even though she were deceived, still a probable and blameless error would not exclude the Church's faith. Of this opinion — if you consider it at face value — seems to be the interlinear Gloss (for so they call it) on the words “the gates of hell shall not prevail against it”; and St. Thomas, In IV Sent., dist. 6, q. 1, art. 3, q. 2, ad 3; and Cardinal Torquemada, Summa de ecclesia, book 2, ch. 91; and Alfonso de Castro of Zamora, De iusta haereticorum punitione, book 1, ch. 5.

But in truth we established the point in the foregoing proposition, namely that the Church will always have the faith. This is true — who denies it? But beyond this, that the Church cannot err in the faith is to be taken by the faithful in this sense: that whatever the Church holds as a dogma of faith is true, and that nothing which she either believes, or teaches is to be believed, is false. For since she is the body of Christ, as the Apostle teaches in Ephesians [5], she is assuredly moved and governed by her own head. An error of the Church, therefore, would be referred back to Christ as its author. In no way, then, can she err in the faith. For the Spirit of truth is the soul of this body — “One Spirit,” he says, “and one body” [Eph. 4]. And if the Church is moved by the Spirit of truth, she will be capable of being moved to no error, not even unwittingly.

And if the Church were to believe a false dogma, or propose it for belief — however much she did so out of ignorance — how would she be the pillar and ground of the truth? [1 Tim. 3] Certainly, if the truth rests upon the shoulders of the Church, it can in no way fail her, unless Christ fail his own Church, and truth itself fail Christ. In sum, if the Church could be deceived in a question of faith, she could also receive as divine a book which nevertheless was not from God — since the same reasoning holds for a single book as for any single dogma. Wherefore this argument would not be valid: “The Church holds the Gospel of Matthew as canonical; therefore it is canonical.” And since to say this would be most impious and most absurd, let us rather say this: that the faithful rightly believe the catholic Church, not only in the sense that the faith of the catholic Church will never fail, but also in this sense, that she can neither believe nor teach anything that is contrary to the true faith.

[...]

Book IV, Final Chapter (p. 148) — To the fifth argument: the Church's faith under divided pontiffs

Nor is there need in this place to bring forward the faith and the light of the Roman church, which has never lain wholly hidden, but has ever been manifest to the whole world, as will be shown more exactly later, in the sixth book.

[*margin: The fifth argument is rejected.*] Nor indeed, under divided [rival] pontiffs, is the faith of the church either dissolved or hidden. Nay, even at such a time the catholic church puts forth a manifest proof of her faith. It is the judgments of the pastors that are then imperiled, which, without a certain head of the church, will be weak and uncertain. Of this matter we shall treat in another book.

[...]

Book IV, Final Chapter (p. 157) — To the twelfth argument: the Church when the Supreme Pontiff has died

[*margin: To the 12th.*] But the twelfth [argument] is weak and trifling, even though Calvin does not hesitate to exult in it, when he ought rather to have blushed at it. He reasons, it is true, at times acutely, more often elegantly: but sometimes so ineptly, insipidly, and frigidly, that you would scarcely believe him to have possessed — I do not say erudition or acumen — but any reason at all, or even common sense. So much can heretical error and blind obstinacy do: they strip away all instruction utterly, extinguish the light of the understanding, and blunt the whole edge of natural talent.

But to the point. This much is true, that the Greeks are schismatics, and that therefore the church is not among them. For we believe one catholic church. Wherefore it must needs be that he who separates himself from unity — since he is not in the one catholic church — is not even in the church at all. Nor are the Greeks only schismatics; they are also heretics: both on other grounds, and chiefly for this cause, that they deny that one shepherd of the whole church was instituted by Christ in Blessed Peter. But these things are out of season here; they will be discussed in season elsewhere.

But if any should so fall away from Christ, the true head of the church, as to renounce faith in him: these men, I grant, lose the privilege of the ecclesiastical name — and much more besides. But when the supreme pontiff dies, one church without doubt remains, and the Spirit of truth remains in her; but she is left maimed and diminished, without Christ's vicar and the one shepherd of the catholic church. Wherefore, although even then the truth is in the church, yet if controversies of faith and religion should arise, the judgments of the church, without a head on earth, will not be so certain. But to pursue these things is not the business of this place.

[...]

Book V, Chapter 5, Question 3 (pp. 184–186) — On the diligence of pontiffs and councils in questions of faith

Perhaps someone will say: are not, then, the decrees of the council of Jerusalem sacred Scripture? For “a great inquiry” was made; yet it has been said that it by no means befits the authors of sacred Scripture to investigate and to reason in a human manner. Likewise — for someone will say this too — if the Supreme Pontiff and councils can err unless they apply diligence, then, since it is not established for us whether the Supreme Pontiff and the fathers of a council showed themselves diligent and industrious, so that the inquiry proceeded by way and method, neither will it even be established whether they have erred. Thus whatever they define will be uncertain.

[...]

[*margin: On the word “faith,” final paragraph — i.e., Sylvester Prierias, Summa, s.v. fides*] But the second scruple settled so deep in Sylvester's mind that he could scarcely drive it out from there. And it would have been better to conceal it than to goad others with the scruple by which he himself was being pricked. There are also some who say, not obscurely, that if the Roman Pontiff ever erred in a definition of faith, this could

have come about because he did not apply as much diligence as he ought before delivering his verdict — since he either did not examine the matter fully, or did not consult those whom he ought to have consulted.

If you object to them that the Apostolic See cannot err in faith, they grant this indeed, but say that the name “Apostolic See” signifies not merely the Supreme Pontiff, but the Pontiff himself as he does those things which pertain to the chair — that is, insofar as he proceeds not from his own resources but from the counsel of good and learned men. Thus the judgments of the Apostolic See are understood to be not those which are put forth secretly, maliciously, without counsel, by the Roman bishop alone or even with a few who favor him, but those which issue from him with the counsel of very many wise men, the matter having first been fully examined.

That this same thing may be said of councils too, there underlie entirely the same reasons which I gave a little before. For we ought not to suppose that the Supreme Pontiff alone errs when he has slept and speaks truth when he has not slept, while the fathers, whether they sleep or wake, always walk straight, and, as the saying goes, with closed eyes discern obscure things even in darkness. It is common, believe me, to all the judges of the Church that, if they issue decrees with a certain rashness, without judgment, incited as it were by a sudden gust of wind, they accomplish nothing at all that may be held solid, weighty, or certain. It is fitting that those things alone be held both weighty and certain in the Church which have been issued with judgment, deliberately and steadfastly. Wherefore those who call into doubt the diligence whether of pontiffs or of councils in settling a cause of faith must necessarily weaken all the judgments of pontiffs and of councils.

We, then, shall pluck that latter scruple, if it is lodged in anyone, out of his heart in another way. For God disposes all things sweetly, and at the same time provides both the end and the means necessary for the end. For if he promised someone eternal life, he would soon also confer on him the grace of good actions by which he might attain that life. Namely, “whom he glorified, the same he also justified and called,” as is said in Romans, chapter 8. So altogether, since he has promised the Church firmness of faith, he cannot fail to grant the Church the prayers and the other supports by which this firmness is preserved.

Nor indeed can it be doubted that what happens in natural things comes to pass, by the same usage, in supernatural things as well: namely, that he who gives the end gives the things that follow toward the end. And since this is a pronouncement of the Philosophers, and is worn smooth also in the mouth of the Theologians, let the more Latinate, I beseech them, permit me sometimes to speak our own things with our own people. For although we generally discourse more elegantly than they are wont, still we sometimes wish to express the opinions we have received from the scholastics in these same words, lest, the form of speech being wholly changed, we should seem to have departed from the school.

And so the Pontiff always performs what lies in him, and so does a council, when they pronounce on faith; and the case falls, if anyone of ours thinks otherwise. For just as, if Christ said to Peter, “I have prayed for you, that your charity may not fail,” it would be understood as more certain than certain that diligence, care, vigils, prayers, and the other timely aids had been obtained for him, which are necessary for the preservation of charity: so, when he said, “I have prayed for you, that your faith may not fail,” we understand beyond doubt that he obtained this from his Father — that all the things that were needed for a right judgment on a question of faith should be present to Peter, whether they were to be expected from God or from man.

But if God were to promise an abundance of crops for the coming year, what could be more foolish than to doubt whether men will commit seeds to the earth? Surely, if they sow, they will reap; if they do not sow, they will not reap. But from God's promise we gather not only the favorable turnings of the heavens, by which all things that the earth brings forth come up more richly, but the cares, labors, and diligence of the farmers as well. For that promised abundance of crops will fall only to those who plow, sow, and labor.

From these things it is easily comprehended that, since Christ promised the Spirit of truth to the Apostles and their successors in the judgment of faith, nothing at all will be lacking to them that is necessary for settling controversies of faith. And if once we permit heretics this license — to call into question whether the judges of the Church exhibited the diligence and care that were needed for the question to be settled by way and method — who is so blind as not to see that all the judgments of pontiffs and councils would straightway be undermined? Moreover, if that matter should come into question and could not be confirmed by sure arguments, yet let this much stand settled and defined for theologians: that councils, however they may otherwise stand, if they have been confirmed by the Supreme Pontiff, cannot err in faith.

And yet, in my judgment, it is absurd that any end should be arrived at except through means suited to it. Thus I shall never admit that either the pontiff or a council omitted any necessary diligence in deciding questions of faith. That is something that can happen to any other, private man — that he either does not devote diligent effort to searching out the truth, or that, even when he has devoted it and shown himself wholly upright in the matter, he still errs nonetheless, though the error be without fault. But error, even blameless error, stands farthest removed from the Church of God, as we established in the previous book. And this is abundantly a great argument that neither the pontiff nor councils have passed over anything necessary in deliberation.

For suppose that something necessary was omitted. Then I ask: ought the faithful to obey those who have judged on a question of faith, for so long — until their negligence becomes known to the Church? They ought to obey, they say. Then during that time, with the judges erring, the Church will err. “Without her own fault,” you say, “the Church will err at that time.” I grant it. But, as has been said, we ought not to admit even this error in the Church of God.

What, moreover, of the fact that, if once we doubt the diligence of the judges, a new examination and an ever-fresh judgment will always be demanded, so that it may be judged whether diligence was applied or not? Let us grant, then, to the judges established by God in the Church that nothing can be lacking to them which is necessary for a right and true judgment.

[...]

Book V, Chapter 5, Question 4 (pp. 195–196) — On the canonization of saints

[*margin: Antoninus, Summa, pars III, tit. 12, ch. 8; Cajetan, opusc. De indulgentiis ad Iulium, ch. 8; St. Thomas, in the Quodlibets*] From this it is readily understood that the Church's judgments which proceed from uncertain human testimonies are weak for producing certain and well-established conviction. Of this sort is that judgment by which she decides that some holy person is to be entered in the catalogue of the saints. Nor, nevertheless, is it permitted with impunity to call decrees of this kind into doubt. Indeed,

it is rash and irreligious to withdraw one's faith from the Church in the consecrating of saints. For he does an injury to a Martyr who prays for a Martyr, as Innocent teaches in the chapter *Cum Marthae*, On the celebration of Masses: he therefore is injurious — and much more so — who casts out of the number of the saints one who has been inscribed in the catalogue of the martyrs. And since he will be doing this rashly and inconsiderately, he will assuredly be punished by the Church, and rightly.

Then too, if any single decree of this kind should come into question, we could certainly, without reproach, call into question the holiness of Jerome, Ambrose, Augustine, and the rest — and even assert that they are condemned with the demons. Thus you could cut them to pieces with curses and harry them with insults — all things at which the ears of the faithful truly shudder.

But if the Church errs in placing just men in the catalogue of the saints, then surely it would not be very absurd to drive out of the Church the cult of all the saints who have been consecrated after Clement. And what more foolish or more shameless than this can be said? Again, it matters greatly for the common morals of the Church to know whom you ought to venerate with religious worship: wherefore, if the Church erred in these, she would also fail gravely in morals. Nor does it make any difference whether you venerate the devil or a condemned man. And if the Church were to enact a law of abstinence that was contrary either to reason or to the Gospel, she would certainly err shamefully thereby: therefore she will likewise err shamefully in the doctrine of morals if she passes a law about venerating a saint whom to venerate — if he is not a saint — conflicts both with reason and with the Gospel.

Lest, then, so great an error exist in the Church, God must be believed to provide in a special way that the Church, however much she may follow human testimonies, should not err in the canonization of saints. Of this most special providence there is an abundantly great proof: that the credit once reposed in human witnesses in judgments of this kind has never been overthrown — a thing which often happens in civil cases. And if perhaps these considerations taken singly do not move one, yet taken all together, connected and joined among themselves, they must move us to believe that those who withdraw faith from the Church in these matters are not indeed heretics, but rash, shameless, and irreligious men.

[...]

Book V, Final Chapter (pp. 205–207) — To the eighth and ninth arguments: on the Councils of Constance and Basel

[*margin: The eighth argument is answered.*] To the eighth argument, then, Cajetan, in the opusculum On the authority of the Pope and Council, chapter 8, responds that the Council of Constance, at the time when it issued that decree, was not universal and entire. For there was then a schism in the Church under three pontiffs, John XXIII, Gregory XII, and Benedict XIII. Hence to assert that at that time that council was general is nothing other than to revive the old schism, and to condemn the others, who followed Benedict and Gregory. Yet this matter was, and always remains, ambiguous.

But if you should object that Martin V, in the final session, approved all and each of the decrees in matters of faith which had previously issued from the Council of Constance, the same Cajetan replies that this pertains properly to the faith, and that what had been

defined against the heretics is approved by Martin as a decree of faith — as was done in the 8th, 15th, and 21st sessions.

And that Martin V approves those things only is evident, first, because that approbation was made at the petition of the orator of the king of Poland, which demanded only this: that the acts of the council against the heretics be confirmed. It is evident also because Martin says that he approves all the things thus done conciliarly, and not otherwise nor in any other way. For he supposed that certain things had been done non-conciliarly. For in that 4th and 5th session, as the same Cajetan points out, no disputation or inquiry of any kind had taken place, nor had learned men yet been chosen to discuss and treat the matters which were to be established in the doctrine of faith; but this was provided for afterwards by the council, in session 6. Thus, if anyone carefully weighs what was handed down in session 4, he will find that it does not have the form of a decree — by which, namely, either the faithful are bound or those who hold the contrary are cast out. It is evident, finally, from the letters of Martin V, in which the errors of John Wycliffe, John Hus, and Jerome of Prague are expressly condemned, while no mention is made of that question, whether a council is above the pope.

[margin: Cajetan on II-II q. 1 a. 10; in the Apologia, ch. 11; and in the oration on the difference of synods delivered in the Lateran council] But since the doubts that are commonly raised about the Council of Constance are most admirably explained by the disciples of St. Thomas — above all by Cajetan, a man most eminent in our family [the Dominican order] — we shall not say so much as a single further word on this matter. So much, then, for the eighth argument.

[margin: The ninth is untied.] As to the ninth, I marvel indeed at the blindness of those who wish to defend the Council of Basel, since it is manifest that — although at the beginning it was assembled with the consent of Eugene IV — it was afterwards transferred by the same pope, first to Ferrara, then to Florence, where the attempts of the men of Basel were crushed by the public authority of the Church. For the union both of the Armenians and of the Greeks, approved by the consent of the Christian people, was effected not in the Council of Basel but in that of Florence. And the Church held Eugene for the true Pontiff even after that Basel sentence of deposition, while it despised that Felix elected in the synod. To what purpose, then, does it serve to cling tooth and nail to the Council of Basel? To what purpose to favor the heretics, who contend that the judgments of councils against heretics are without force on the ground that the Council of Basel condemned under the name of heresy men who even now are judged catholics? He who does not perceive these things would seem likely to perceive nothing at all. Wherefore I do not doubt that it would now be a great offense to wish to take one's stand for the Council of Basel, since that schism, now extinguished, could by no other means more readily be kindled anew.

And Nicholas V plainly holds that this Felix was not a true pastor of the Church, but one merely in name. Nor does he call it a true and general council, but an assembly called by the name of a general council; whereas Eugene, of happy memory, his predecessor, he names more honorably. Thus in his letters he ratifies nothing except the collations of benefices — so they are wont to speak — and other things of that kind which, if they were held void, the people, whose pastors or officials had been changed, would suffer much harm.

And Leo X, in the Lateran council, session 11, plainly defines that the Council of Basel was not legitimately celebrated. And later, when a certain sanction issued by the Council of Basel was under discussion, he says: “Just as Leo caused the things which had been done rashly in the second synod of Ephesus, against justice and the catholic faith, to be revoked afterwards in the council of Chalcedon, so we cannot, with conscience intact and

the honor of the Church preserved, be drawn back from the revocation of so nefarious a sanction. Since all those things, after the translation of the same Council of Basel made by Eugene IV, pope of happy memory, our predecessor, were done by the Basel conciliabulum, or rather conventicle, and therefore could have no force. Since, moreover, it is manifestly established — not only by the testimony of holy scripture, by the sayings of the holy fathers, and by the decrees of the other Roman Pontiffs, but also by the very confession of the same councils — that the Roman Pontiff alone, as holding authority over all councils, has the full right and power of summoning, transferring, and dissolving councils.” Thus far the Lateran council. He proves what he had said by many testimonies and examples, which we, lest the matter grow long, have passed over.

But the Parisian doctors appealed from the Lateran council, and the appeal is circulated in the name of the academy [the University of Paris]. Whose it was, I do not here dispute; this I do maintain: that it is circulated not without scandal to the Church and ruin. There exists an anathema of Pius II against those who appeal to a future council. And even apart from Pius’s reasons, of which he rendered many in his letters, it is manifest that this practice is both the supreme patronage of all heretics, and opens the very widest window to the loss of ecclesiastical obedience and the ruin of true piety. But it belongs neither to this place nor to this time to discourse of these things.

But you object that the things decreed in the 2nd session of the Council of Basel were decreed by a legitimate council, as appears from the letters of Eugene, which were read in the 16th session of the same council. But we answer this question briefly: Eugene did not approve the decrees that were issued, but only that the general Council of Basel had been legitimately continued from the time of its inception. Next, in the second session the council was not full, because the greater part of the bishops was absent — nay, very few were present. Wherefore in its inception it was indeed general, but it was not yet truly and perfectly general in actual fact. Moreover, the Legate proceeded without commission to the enacting of those decrees, as is gathered from Eugene’s letters to Julian [Cesarini]. Add that, since there had always been a grave and difficult dispute among catholics — some saying that the pope is above the council, others on the contrary asserting that the council is above the pope — with no investigation made and no examination preceding, that which was ambiguous was simply laid down. Wherefore it was not a decree of faith, but a mere commemoration of that doctrine which had been handed down in the Council of Constance. Seeing this, the fathers of this synod again, in session 33, treated the same matter in a different way, defining that these things were thenceforth to be embraced as decrees of faith. But by then all the power of the legates had been abolished, and the synod translated to Florence. Wherefore it is no wonder that it erred disgracefully and childishly, in condemning as heretics men who are now without controversy accounted faithful.

[...]

Book VI, Final Chapter (pp. 234–238) — To the tenth argument: how it is established that the Roman pontiff succeeds Peter

[margin: *The tenth is resolved. See Cajetan, De primatu ecclesiae Romanae, ch. 13.*] In refuting the tenth [argument], the things Cajetan said in that opusculum of twenty-seven questions need not be taken up again by us here, lest we “do over what is done,” which we are forbidden by the old proverb. What presses now must be explained diligently: namely, what force of consequence there is, such that, if Christ built the church upon

Peter, the Roman see should straightway be understood to have been set over the rest by divine right. For thence that inference too will be plain: if Peter's faith, in accordance with Christ's prayer, did not fail, the greater causes of the church are to be referred to the Roman bishop. I see, however, that only a learned and intelligent man can dispatch matters of this kind plainly and clearly. I do not profess to have attained capacity for so great and so difficult a matter; I do avow that I have pursued it. For it is well known that I undertook to expound in this work not things obvious and worn smooth by everyone's talk, but things which, even with diligence applied, could scarcely be understood by even the most learned. If the attempt succeeds, it rightly deserves praise; but if it does not succeed, it certainly does not deserve blame. But enough of this. Let us now unfold the matter itself.

First, it must be recalled — as we have often said elsewhere — that the things said to Peter by Christ in the gospel, not as to a private man but as to the one set over the church, pertain also to his successors, without any violence to, or inversion of, the letter. Just as the things the Lord commended to the apostles that are equally fitting for all the faithful were, in the literal sense, commended likewise to all future Christians — according to what Christ himself explained at Mark 13, saying: "What I say to you, I say to all: watch." For watching pertains equally to all; wherefore, even if Christ had not interpreted this as expressly as he did explain it, we too should of necessity explain it in the same way.

By like reason, again, the things the Lord spoke to the apostles as regarding them insofar as they were priests of the church: these we Catholics refer not to all the faithful, but to the rest of the priests to come in the church. Of this kind is that saying of Luke 22: "Do this in memory of me." For when the Lord, having both taken and broken the bread, and having lifted his eyes to heaven, gave thanks to God, and likewise both took and raised the chalice, he without doubt offered the Eucharistic sacrifice — that is, [a sacrifice] of thanksgiving — after the rite of the Jews; unless he was foolish and ungrateful, in that, although he could render supreme thanks to the Father by referring back to him the supreme gifts which he had received from him for us, he had by no means rendered them. And so Christ, in bidding his Apostles to do this themselves — namely, what they saw him doing — assuredly commanded this: that they offer the victim of the Eucharist and of thanksgiving. Which both Cyprian, in the epistle to Caecilius, and Irenaeus, book 4, chapter 32, have divinely expounded. [*margin: De consecratione, dist. 2, ch. Scriptura*]

Since, therefore, to offer sacrifice is the proper office of sacrificers and priests, what the Lord in that place committed to the apostles pertains properly to the future priests of the church — not also to the common crowd, even of little women, as the heretics have believed. Further, the things we read that Christ enjoined upon these same men because they were to be pastors of the church — let us believe that these very things were enjoined, to the letter, upon the bishops and pastors who succeed them. An example of this is that saying of Matthew 18: "Whatsoever you shall bind," etc. And likewise that of John 20: "As the Father has sent me, I also send you; receive the Holy Spirit," etc. And if we hold to this rule in explaining the sacred writings, we shall beyond doubt avoid that jumbled and darksome confusion which the heretics suffer in the understanding of scripture.

To what end all this? Namely, that we may aptly and prudently distinguish the things said to Peter in the gospel: and if anything befits him as a private man, we should judge that it regards the individual faithful. Of this kind is: "If your brother sins against you, rebuke it between you and him alone," etc. [*margin: Matt. 18*] But if anything belongs to him as prince of the apostles and pastor of the church, this, we think, is beyond controversy to be referred to those who succeed in the pontificate of the church — and that in the genuine

sense of the letter. For the things which a civil legislator prescribes to his delegates are referred not to him alone to whom he speaks with living voice, but to the others who succeed him in the same office.

Next, this too must be very carefully attended to: that the Roman pontiff succeeds Peter is not indeed revealed per se in the sacred writings, but is established from elsewhere — namely from this, that the weightiest histories have handed down that Peter the apostle at last placed his chair at Rome, and there, while he was bishop, died. This Velenus denies, this Sebastian Franck, this certain other heretics deny; indeed, they even say that Peter never so much as visited Rome. Yet since all the serious historians have recorded it, it is denied [only] out of malice. For these men are not to be thought to hold in their mind what they deny in words — unless they are believed to be children, and foolish children at that. For what can be called so foolish and so childish as to deny that those things were once done in the commonwealth which every man of greatest weight before us has affirmed were done?

[margin: 2, q. 7, *Beati*] But if you ask for the authorities for the matter we are discussing: Dionysius is one, in the epistle to Timothy. Dionysius, bishop of the Corinthians, is another, in Eusebius, book 2 of the Ecclesiastical History, chapter 25. The third witness is Clement, in epistle 1. The fourth is Anacletus, in the epistle on the ordination of bishops. The fifth is Marcellus (24, q. 1, chapter *Rogamus*). The sixth is Leo, in the first sermon on the feast of Peter and Paul. The seventh is Gelasius, with a council of seventy bishops. The eighth is Innocent III, in the chapter *Per venerabilem*, [title] *Qui filii sunt legitimi*. The ninth is Nicholas III, chapter *Fundamenta, De electione*, in the Sext. The tenth is Leo IX, in the synodical epistle to Peter, Patriarch of Antioch. The eleventh, Constantine, in the edict before the synod of Nicaea (dist. 96, chapter *Constantinus*). The twelfth, Epiphanius, at Heresy 27, which is that of Carpocrates. The thirteenth, Irenaeus, book 3 against Valentinus, chapter 3. The fourteenth, Tertullian, book 4 against Marcion, and in the book on the prescription of heretics. The fifteenth, Ambrose, in the oration against Auxentius on the surrender of the basilicas. The sixteenth, Jerome, in the book On Illustrious Men, under Peter. The seventeenth, Hegesippus, in the third book on the destruction of Jerusalem, chapter 2. The eighteenth, Augustine, book 1 against Julian the Pelagian. Last of all, Eusebius, book 2 of the Ecclesiastical History, chapters 14 and 15, and also book 3, chapters 2 and 25 — in which places he also cites Origen, Caius, and Papias.

Now he who does not believe witnesses so many and so incorrupt shows himself to be, certainly, either a fool or a heretic — to pass over the public voice of the city of Rome, and likewise the very places of the city, which even now bear testimony to the life and death of Peter. These things being laid down, then, a difficult and very obscure question is easily explained — one which indeed, as I have said, so entangled the most learned men that they were unable to extricate themselves. For that the pastor substituted by Christ in the church after Peter has Peter's ordinary power, and the other privileges granted to Peter for the sake of the church, is had from the gospel — in accordance with the things noted and demonstrated by us in the first point of instruction. But that the man whom Christ put in the dead Peter's place was the Roman bishop is gathered from the thing done [i.e., from historical fact]. For if Peter had always remained seated at Antioch, as he began, without doubt the bishop of Antioch would have legitimately succeeded him in the pontificate.

But this also, lastly, must be considered — for it is a great matter, and most worthy of diligent contemplation — that not only does that pertain to catholic doctrine which was expressly revealed to the Apostles, but this also, which is established by an evident syllogism and inference from one proposition that is revealed and another that is certain in the natural light. For instance, that Christ the Lord has two wills and two intellects, and

likewise actions of each power, both created and uncreated; or even that Christ, by his own nature, can laugh, as other men can: this perhaps is not had expressly in the sacred writings. But since it is handed down in them that the Son of God is man, and it is established by natural reason that every man has a created will and intellect, and that the operations of each power are also created, and likewise that every man, as he can weep, so also can laugh — whoever denies any one of these things will be judged a heretic. Because, by denying the consequent — namely, that the Son of God has a created intellect and intellection — he thereby denies the antecedent from which that was inferred, that is, that the Son of God is man.

Take another example. That the Council of Nicaea did not err in the faith, or that of Chalcedon, or of Ephesus, is set forth neither in the sacred books nor in the traditions of the apostles — but only this: that councils legitimately gathered in the Holy Spirit cannot err. But that the councils of Nicaea, Chalcedon, and Ephesus were legitimately convened is not believed from divine revelation. It is believed, however, by human faith and by the tradition of history worthy of trust, through which we have it that those synods, at the summons and with the confirmation of the true pastors of the church, came together from the whole world. Whence, although the certitude and truth of those things which have been defined in councils of this kind seem to depend on two principles, as it were — of which the one is revealed by God, namely that councils legitimately gathered are of the most certain truth, while the other is believed by natural certitude alone, through the things which serious and incorrupt writers have handed down to memory — nevertheless, he will be a heretic who denies the enactments and decrees of those synods, no otherwise than if he denied the gospel.

Take also another most evident example. That the priests of this our present age were duly consecrated by true bishops is not delivered in the sacred writings; rather, it is a thing done [a matter of historical fact], one that depends on the words and the intention of those consecrating. On this principle, therefore, which we hold with human certitude — namely, that these priests were duly initiated — it must depend whether there now exists in the church a true Sacrament of the Eucharist. And whoever should deny this, the church would judge him a heretic. Even though only that universal proposition has been received through revelation: that all true priests, if they have the right intention of consecrating, confect the true sacrament of the Eucharist. But that those who now live are such [true priests], not the gospel alone, but the grave and constant reasoning of nature, together with the gospel, proves.

In exactly the same way, whoever denies that the Roman pontiff has the same power which Peter received from Christ must be reckoned an adversary of the faith, although from the gospel nothing else is proximately gathered than that Peter's successors have the same primacy with Peter. For if to this evangelical conclusion you add that proposition — that the bishop of Rome is Peter's successor — which we have received from the histories, by the tradition of the weightiest men, it is manifestly gathered that the Roman bishop is both superior to the other bishops and has in the church the same power and authority which Peter had. Aptly, therefore, and prudently have the supreme pontiffs referred those gospel testimonies to the Roman bishop and the apostolic see.

But if this opinion of ours should be less approved by learned men — though I scarcely know why it should be less approved — we have nevertheless yet another form of explaining this matter, from which it may be clear that the Roman pontiff is by divine institution Peter's successor in the pontificate of the whole church, and accordingly that those testimonies which prove both the primacy and the faith of Peter belong to the Roman bishops. For we said earlier that our faith is contained not only in what is written, but also in tradition. Thus, although that the Roman bishops succeed Peter is not had in writing in the sacred books, it has nevertheless been handed down to the church by the

apostles as though from hand to hand. Now, that this was a living tradition of the apostles is manifestly established by those ways, namely, which we either opened up or pointed out in the third book. For we need not explain everything one by one, lest by a long discourse we make trouble for the reader.

[margin: *See Innocent I to the councils of Carthage and Milevis; and Gelasius to the Emperor Anastasius*] Certainly the evident proof of this matter is this: that not merely before Phocas and Constantine, not only before the synod of Nicaea, but even before any emperor after Nero, before any council of the church, before any supreme pontiffs after Peter, the Roman bishop was always acknowledged by churchmen as Peter's successor. And that this was an apostolic tradition is handed down, not obscurely, by Anacletus, Peter's disciple, in the first epistle, on the oppression of bishops; by Sixtus I, to the Gallican churches; Eleutherius, to the same; Victor, in the epistle to Theophilus; Sixtus II, in the epistle to bishop Gratus; Zephyrinus, in the epistle to the Sicilian bishops; Marcellus, to the bishops of the province of Antioch; Melchiades, to the bishops of the Spains; Marcus, in the epistle to Athanasius; Julius, to the Oriental bishops.

Nor is it likely that Christ the Lord did not reveal to his Apostles a thing so necessary for holding together the unity of the church. For if to Moses was revealed that place which the Lord had chosen, that from it divine oracles should be sought by the Jews: how much more must it be believed that Christ made manifest to Peter what that place was where he had determined to set both the principate and the seat of his kingdom? And if the apostles were admonished by the voice of the Lord that the church of Jerusalem should be transferred to the city of Pella — as Eusebius, book 3 of the Ecclesiastical History, chapter 5, and Epiphanius, book 3 against the heresies, last chapter, relate — much more shall we believe that Peter was advised by the Lord's oracles to remove from the city of Antioch to Rome, and to transfer his chair from there.

[margin: *Erasmus, in the censure of the epistle of Jerome entitled De oblatione altaris(?); Beatus Rhenanus, on Tertullian's book De praescriptione haereticorum; Matteo Palmieri and Hermannus*] But if this is so — as in truth it is, nor can anything else be believed except most absurdly — then let the faithful henceforth understand whence came that cry of the Lutherans by which, among the other articles proposed at Worms [printed “Viuomarcae”], they set down this one also: that the power of the Roman pontiff, which he takes to himself over the other bishops, should be abrogated. Let them understand, again, what those men are contriving who assert that the monarchy of the Roman bishop arose after the time of the divine Jerome. For those who write that Phocas instituted that the Roman church is the head of all the churches wrote this perhaps piously indeed — for I judge no man's mind — but nevertheless imprudently.

Let them understand also on what ground St. Thomas, in book 4 Against the Gentiles, chapter 76, affirms that theirs is a presumptuous error who strive to withdraw themselves from the obedience and subjection of Peter, not recognizing his successor, the Roman Pontiff, as the pastor of the universal church. Let them understand, finally, for what reason Leo X condemned Luther's article 25 in these words: “The Roman Pontiff, Peter's successor, is not the vicar of Christ over all the churches of the whole world, instituted by Christ himself in blessed Peter.”

To the tenth argument, therefore, since in expounding it the difficulty was very great, we could not reply in fewer words.